

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 05/18/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-03102
CASE NAME: ALBERTO MALDONADO VS. RICARDO SALAS
*HEARING ON MOTION IN RE: GOOD FAITH SETTLEMENT BETWEEN SALAS AND MALDANADO
FILED BY: SALAS, RICARDO
TENTATIVE RULING:

Before the Court is Defendant Richard Salas' Motion for Determination of Good Faith Settlement ("Motion").

Defendant Salas' unopposed Motion is **GRANTED**.

Factual and Procedural Background

This matter pertains to a multiple motor vehicle accident that occurred on April 1, 2022, at

approximately 4:25 a.m. According to the police report, the accident occurred on the westbound portion of I-80 in Pinole. Due to slowing traffic, Plaintiff Maldonado came to a complete stop in the #2 lane. Non-parties Williams and Rodriguez also came to a complete stop in the #1 and #3 lanes, respectively.

Defendant Salas was driving his Tesla at approximately 70- miles per hour. He asserts that he had the Tesla in 'self-driving mode' at the time. The traffic report indicates that he noticed traffic was slowing down and he assumed that the Tesla would slow down on its own. When it did not, he stepped on the brakes and veered to avoid hitting Maldonado. His actions were too late, and Mr. Salas collided with Mr. Maldonado as well as Williams – who was pushed into Rodriguez. The police report notes that the cause of the accident was Salas' driving at an unsafe speed. No citation was issued.

Plaintiff Maldonado filed his complaint in this matter on December 7, 2023. It alleges four causes of action: (1) strict products liability; (2) negligent produces liability; (3) motor vehicle negligence; and (4) general negligence. All causes of action are alleged against Tesla, while only causes of action 3 and 4 are alleged against Defendant Salas.

On September 5, 2025, Defendant Salas filed a motion for determination of good faith settlement. Tesla opposed the motion, essentially arguing the Salas failed to provide sufficient evidence to support his motion. On December 22, 2025, the Court denied Mr. Salas' motion without prejudice due to the lack of sufficient evidence for the Court to be able to properly determine if the settlement was made in good faith. The Court noted that Mr. Salas could "file a new motion with additional evidence in support...."

Mr. Salas filed this second Motion for Determination of Good Faith Settlement on January 13, 2026. It includes new and additional evidence. The motion is unopposed.

Standard

Code of Civil Procedure section 877.6 (a)(1) provides, in relevant part, "Any party to an action in which it is alleged that two or more parties are joint tortfeasors [...] shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors [...]." The issue of good faith must be determined on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response. (Code Civ. Proc. § 877.6 (b).)

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. § 877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt*. That case identified six nonexclusive factors for determining if a settlement was made in good faith:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;

- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, supra, 38 Cal.3d at 499.)

A settlor's percentage of liability is the touchstone question to be considered in a contested good faith settlement proceeding. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1262-1264) The settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*Id.* at 1263.)

The party asserting the lack of good faith has the burden of proving "that the settlement is so far 'out of the ballpark' in relation to the factors [noted above] as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt*, supra, 38 Cal.3d at 499-500.)

Analysis

Defendant Salas has agreed to pay Plaintiff the amount of \$2,325,000.00, which is the balance of his insurance policy limits applicable to this incident. In exchange, Plaintiff will dismiss the current action against Defendant Salas and fully release of all claims related to the accident.

Defendant presents evidence that on September 25, 2025, Plaintiff served non-settling defendant Tesla with a Code of Civil Procedure section 998 offer of settlement in the amount of \$1,250,000.00. (Streza Decl. Ex. E.) Thus, even if Plaintiff were to obtain the full amount it is seeking from Tesla, the total amount Plaintiff is seeking would total \$3,575,000. Accordingly, Defendant Salas' settlement payment represents over 65% of the settlement value of Plaintiff's claims. The Motion and Declaration in Support also outline the particulars of the case and explain the parties' various positions and potential for liability.

If a motion for good faith determination is unopposed, a "barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient." (*City of Grand Terrace*, supra, 192 Cal.App.3d at 1261.) The Court finds there is sufficient information to determine that the settlement has been made in good faith.

Conclusion

Defendant Salas' Motion for Determination of Good Faith Settlement is **GRANTED**.

2. 9:00 AM CASE NUMBER: C24-00851
CASE NAME: DANIEL COSTA VS. FADIA SAADEH
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendants Fadia Saadeh, Patrick Ward, Country Equestrians LLC, and Dig This, Inc., ("Defendants"). The Motion argues